Overview

Purpose	This document describes the process for reportability decision (RD) making and regulatory reporting (RR) in Japan.
Scope	This document applies to all functions that perform activities related to reportability decision making and reporting for Japan per applicable regulations.
Roles	Formally Designated Complaint Handling Unit ▪ Operating Unit (OU) Complaint Unit ▪ Region Complaint Unit (RCU)** **Note: The Region Complaint Unit (RCU) act as the Marketing Authorization Holders (MAH) for the processing of Japanese events and are responsible for regulatory reporting in Japan.

Table of Contents

Terms and Definitions **2**
Process Overview **5**
Process Detail **7**
1. Make Reportability Decision 7
2. Regulatory Reporting 9
3. Regulatory Inquiry 10
References **10**
Quality Records **10**
Appendix A – Japan PMDA Decision Tree **11**
Appendix B – Multiple Decisions per Event **13**
Appendix C – Matrix Logic for Determining Report Types **13**
Appendix D – Japan Foreign Experience Report (FER) Tree **14**
Appendix E – Code and Rationale Matrix **15**
Appendix F – Japan (PMDA) Reporting Timelines **17**

Terms and Definitions

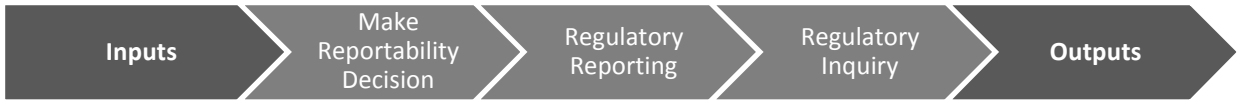
Term	Definition	Source
Aware Date	The date that an employee of Medtronic, or an entity acting on Medtronic's behalf, acquires information that reasonably suggests that a reportable event has occurred. Note: Per local Japanese regulations, the MAH Aware Date is the date the MAH obtain or learn of the event information.	Medtronic
Follow-Up / Supplemental Report	A report provided to the competent authority(ies) to whom an initial report was sent. This type of report is used in cases where the timeline for investigation outlined in the initial report has been reached and investigation is not complete.	Medtronic
Foreign Experience Report (FER)	When the complaint event did not occur in a specific country, but because the product in question is registered there, that country's Regulatory Body may want a report notifying them of the complaint.	Medtronic
Incident	A malfunction or deterioration in the characteristics and/or performance of a device, as well as any inadequacy in the labeling or instructions for use (IFU) which: ▪ Led or might have led to a death ▪ Led or might have led to a serious deterioration in the state of health of patient, user, or another person. ▪ A serious deterioration in the state of health includes: – Life-threatening illness or injury – Permanent impairment of a body structure – A condition necessitating medical or surgical intervention to prevent permanent impairment of a body function or permanent damage to a body structure – Any indirect harm because of an incorrect diagnostic or IVD test results when used within manufacturer's instructions for use – Fetal distress, fetal death, or any congenital abnormality or birth defects.	Medtronic
Marketing Authorization Holder (MAH)	Marketing Authorization Holder (MAH) is the person or company who is licensed to distribute, sell and commercialize a medical product.	▪ Medtronic ▪ The Pharmaceuticals and Medical

Term	Definition	Source
	Note: The MAH are responsible for regulatory reporting in Japan.	Devices Act Article 68-10 (1)
Malfunction	A failure of the device to meet its performance specifications or otherwise perform as intended. Performance specifications include all claims made in the labeling for the device. The intended performance of a device refers to the intended use for which the device is labeled or marketed"*, and include uses commonly applied in the medical community. Use errors may also be considered a malfunction despite the fact that the device did not fail to meet specifications (see Use Error definition below). Note: A failure of a device to meet a specification that does not affect the performance (either intended or labeling claims) is not considered a malfunction, (e.g., cosmetic defects).	Medtronic
Medical or Surgical Intervention	Any deliberate attempt to modify a health outcome, using drugs, surgical procedures, devices, behavioral treatments, and process-of-care changes (including hospitalization), excluding general first aid.	Medtronic
Original Equipment Manufacturer (OEM) Product	An external supplier of a finished device, drug, biologic, human tissue or combination product which: ▪ Owns the design and manufacture; ▪ Is designated as the Legal Manufacturer; and ▪ Owns primary regulatory responsibility. Medtronic may perform certain other regulatory actions / responsibilities (e.g., product registration and listing) in specific geographies.	Medtronic
Permanent Impairment or Damage/ Permanent / Permanent Disability	Irreversible impairment or damage to a body structure or function, excluding trivial impairment or damage. ▪ Note: If it is unclear if the impairment/damage is trivial, ▪ determination shall be made by a Person Qualified to Make ▪ a Medical Judgment. Data inputs into this decision may ▪ include, but are not limited to, the following: ▪ The risk management document assigned severity for ▪ the failure mode ▪ Hazard analysis and/or situation analysis for the failure mode ▪ Assessment of the severity of the event	21 CFR 803 Source for "Note" Medtronic

Term	Definition	Source
Regulatory Inquiry (RI/RFAI)	A request for information from regulatory authorities and/or notified bodies. Possible subjects of regulatory inquiries include, but are not limited to, complaints, regulatory reports, professional publications, presentations, user reported events, and regulatory report trending information. Excludes requests for information related to regulatory submissions, audit activities, and general compliance requests.	Medtronic
Remedial Action	Any action other than routine maintenance or servicing of a device necessary to prevent recurrence of a reportable event. Action taken to correct only a single device should not be considered a remedial action.	Medtronic
Remote (risk)	To be defined by each business utilizing occurrence probabilities outlined in the risk management procedure and/or risk management file for the product.	Medtronic
Serious Public Health / Threat Risk of Substantial Harm to Public Health	An event type that results in imminent risk of death, serious deterioration in state of health, or serious illness that requires prompt remedial action, events that are of significant and unexpected nature such that they become alarming as a potential public health hazard, and/or the possibility of multiple deaths occurring at short intervals.	Medtronic

Term	Definition	Source
Serious Injury	An injury or illness that causes: 1. Disabilities. 2. Case with possibility of leading to death or disabilities. 3. Case requiring admission or extension of admission to hospital or clinic for treatment. 4. Case of death or with severity equivalent to that of (1) to (3); and/or 5. Congenital disease or abnormality in later generation	PMDA
Similar Products / Sister Products	Products with equivalence in shape, structure, raw material, usage, efficacy, effect, performance, etc. (for example, - those products that differ only in size from products approved in Japan). Next- generation products are not considered similar).	Medtronic
System	Multiple devices approved as a system by FDA under the same PMA or 510k, or otherwise approved as a system by a regulator.	Medtronic
Trivial	In the context of assessing severity of impairment or damage, trivial is considered non-life-threatening impairment or damage.	Medtronic
Use Error	An error regarding the use of a device, made by the person using the device, that is inconsistent with the approved instructions for use (IFU) or other training provided to the user. Act or omission of an act, that has a different result to that intended by the manufacturer or expected by the operator of the medical device (unintended use against IFU).	Medtronic

Process Overview



- Product Complaint

- Decision Rationale
- Regulatory Report
- Record of Inquiry

Responsibility Matrix – Japan

The Marketing Authorization Holder (MAH) is required to implement post market safety activities in accordance with domestic (Japanese) regulatory requirements. Per the *Ministerial Ordinance on Good Vigilance Practice (MHLW MO135)* which is stipulated as the requirement for licensing MAH under *Article 23-2-2 of Pharmaceutical and Medical Devices Act.*

As directed by the MAH in Japan, for Foreign Experience Reports (FER) i.e., events that occur outside of Japan, the OU complaint handling unit will inform the MAH of the potentially reportable event after completion of the investigation by assessing the initial FER as 'potential'. This is in alignment with the *Ministerial Ordinance on Standards for Manufacturing Control and Quality Control for Medical Devices and In-Vitro Diagnostics" (MHLW MO169), Chapter 3 Additional Requirements Regarding Manufacturing Control and Quality Control of Medical Devices, Article 69* and *Medical Device Reporting Manual (Fuguai-hohkokusho-toh-no Tebiki) (published by the Pharmaceutical Safety Division, Pharmaceutical and Environmental Health Bureau, Ministry of Health, Labor and Welfare Cooperation (Japan) Pharmaceutical and Medical Devices Agency, Medical Device Quality Control).*The MAH is responsible for regulatory reporting in Japan and will herein be referred to as Region Complaint Unit (RCU). Per local Japanese regulations, the MAH Aware Date is the date the MAH obtain or learn of the event information. This is per the *Pharmaceuticals and Medical Devices Act Article 68-10 (1).* Note: MAH has visibility to potentially reportable events when the FER decision is set to 'potential'.

Region/ Country	Portfolio	Operating Unit	RD	Approve RD	RR	Approve RR	Submit RR	FER	Approve FER
Japan	Cardiovascular	Cardiac Ablation Solutions (CAS), Cardiac Rhythm Management (CRM), Cardiovascular Diagnostics & Services, Mechanical Circulatory Support (MCS), Cardiac Surgery, Structural Heart & Aortic Integrated, Coronary & Renal Denervation, Peripheral & Endovenous	RCU	N/A	RCU	RCU	RCU	OU	RCU
	Diabetes	Diabetes	OU	RCU	RCU	RCU	RCU	OU	RCU
	Medical Surgical	Gastrointestinal, Patient Monitoring, Respiratory Interventions, Renal Care Solutions, Surgical Innovations, Surgical Robotics	RCU	N/A	RCU	RCU	RCU	OU	RCU

	Neuroscience	Cranial & Spinal Technologies, Ear/Nose/Throat, Neuromodulation, Neurovascular, Pelvic Health & Gastric Therapies	RCU	N/A	RCU	RCU	RCU	OU	RCU
		Kanghui	RCU	N/A	RCU	RCU	RCU	OU	RCU

Process Detail

1. Make Reportability Decision

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Review the event and associated information and evaluate if complaint is reportable according to applicable regulations. ▪ Make an RD timely for every complaint based on information reasonably known. ▪ Refer to *Appendix A - Japan Decision Tree* when making the RD. ▪ For Original Equipment Manufacturer (OEM) products, reporting responsibility is applicable if Medtronic is the MAH for the product in Japan. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the MAH and therefore has reporting responsibilities. – When making the RD for events involving OEM products, input received from the OEM may be considered as needed to inform the RD. Where Medtronic is responsible for reporting, the final decision will be made per Medtronic process. ▪ Document the RD in the complaint file. Based on results of the decision trees, rationale is provided in *Appendix E – Code and Rationale Matrix*. ▪ Some regulations require reporting determinations based on the event rather than devices involved. For complaints involving multiple Medtronic products being reported as a system/event, RDs may also exist for each product. Complete reports to indicate system/event report. Use *Appendix B - Multiple Decisions per Event*, when multiple RDs may exist.

Step	Role	Action
		Note: Information may need to be requested from the customer to make the RD. Perform all customer communication per 027-WI188, *Customer Communication* or equivalent.
2.	Region Complaint Unit	When the OU Complaint Unit makes the initial RD: ▪ Conduct a secondary review of the RD. ▪ Document the secondary review in the complaint file.
3.	Formally Designated Complaint Handling Unit	Review the previously documented RD when additional information is received that potentially changes the decision. A review is required for information such as, but not limited to the following: ▪ Aware date ▪ Event clarification ▪ Serial or lot number ▪ Patient outcome ▪ Alleged failure mode If the initial reportability decision changed after the reassessment, determine if a supplemental or follow up report to the health authority applies. ▪ Information such as, but not limited to patient ID, gender, physician name, etc. does not require review of previously documented RD. Document a reassessed decision in the complaint file.
4.	Formally Designated Complaint Handling Unit	Japan regulations may require RDs (e.g., Foreign Experience Reports (FER)) for events that occur in other Regions/countries. See *Appendix D - Japan Foreign Experience Reporting for FER* determinations: ▪ Assess the initial FER as 'Potential' after completion of the complaint investigation per *Responsibility Matrix - Japan*. ▪ For OEM products, FER responsibility is applicable if Medtronic is the MAH for the product in Japan. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the License Holder and therefore has reporting responsibilities. ▪ See *Appendix C - Matrix Logic for Determining Report Types,* for reporting requirements. ▪ Complete any FER decisions timely to ensure regulatory reports are submitted on or before the due date.

Step	Role	Action
		If additional information is received after a reporting decision has been made, reassess the original FER decision.

2. Regulatory Reporting

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	For reportable events: ▪ Determine the report type (e.g., initial, follow-up, final, individual/summary report). ▪ Document the report type in the complaint file.
2.	Formally Designated Complaint Handling Unit	When an RRhas been submitted and new information becomes available, determine if it qualifies for reporting via a follow-up, supplemental, or final report in accordance with the country specific requirements.
3.	Formally Designated Complaint Handling Unit	Complete RRs using the current report template for the applicable report type. Access reports on the regulatory body website and/or the complaint handling system(s). If multiple RRs are required for a single event, align each report with this document.
4.	Region Complaint Unit	Translate reports to local language prior to submission, as necessary. Report language must meet applicable regulatory authority requirements.
5.	Formally Designated Complaint Handling Unit	Submit all RRs on or prior to the determined due date. Refer to *Appendix F Japan PMDA reporting timelines.* Include all required information known at the time of the report.
6.	Formally Designated Complaint Handling Unit	If a report receipt (or acknowledgement number) is provided by a regulatory authority and/or notified body: ▪ Document the information within the complaint file.
7.	Formally Designated Complaint Handling Unit	If a report is submitted late (i.e., after the due date, including initial and supplemental reports) consider escalation per D00528427, *Regulatory Report Timeliness Evaluation* or local processes.
8.	Region Complaint Unit	Submit a copy of the regulatory report to other interested parties if required/requested (e.g., regulatory bodies, notified bodies, pharma partners).

Step	Role	Action
9.	Region Complaint Unit	If a report receipt (or acknowledgement number) is provided by a regulatory authority and/or notified body, document the information within the complaint file.

3. Regulatory Inquiry

Regulatory authorities may submit inquiries or request additional information from the OU or Region.

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Process regulatory inquiries per D00224727, *Customer Quality Regulatory Inquiries.*

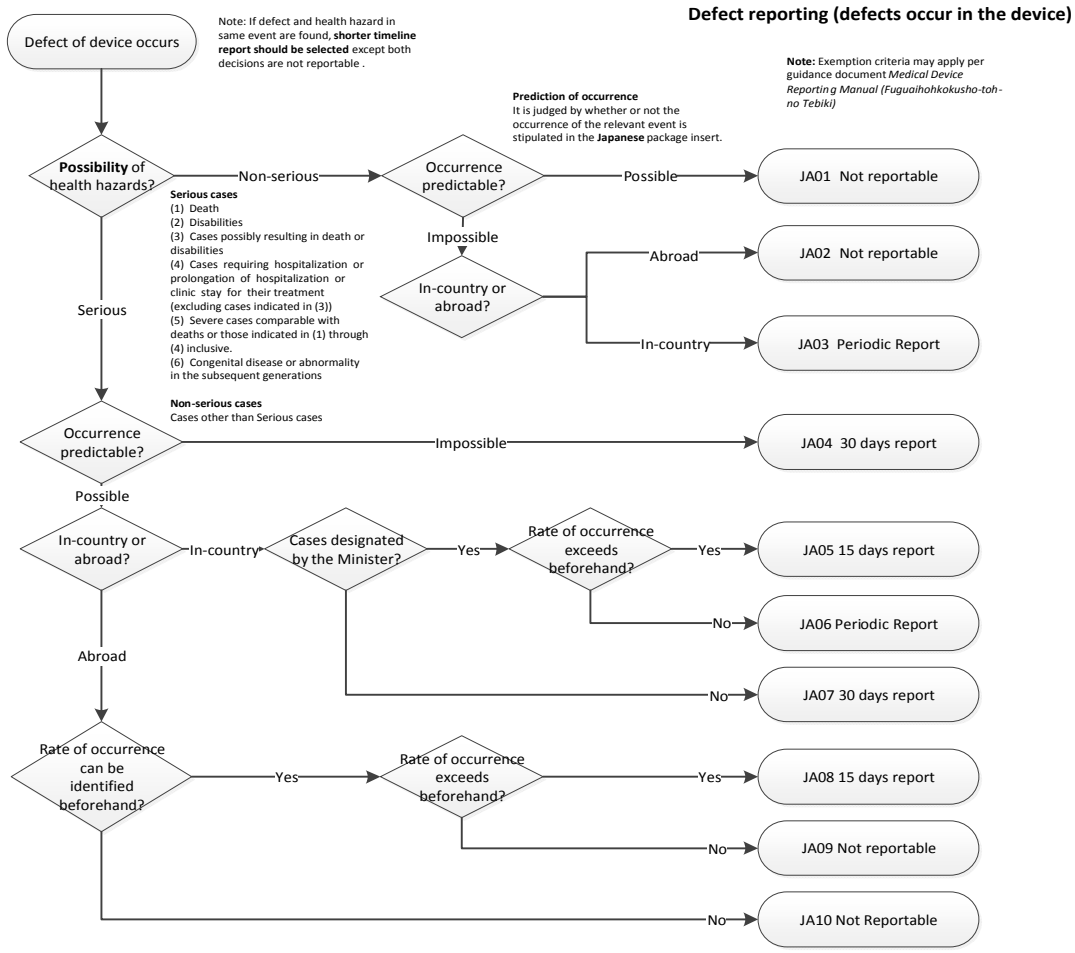
References

Number	Title
027-WI188	Customer Communication
D00224727	Customer Quality Regulatory Inquiries
D00528427	Regulatory Report Timeliness Evaluation

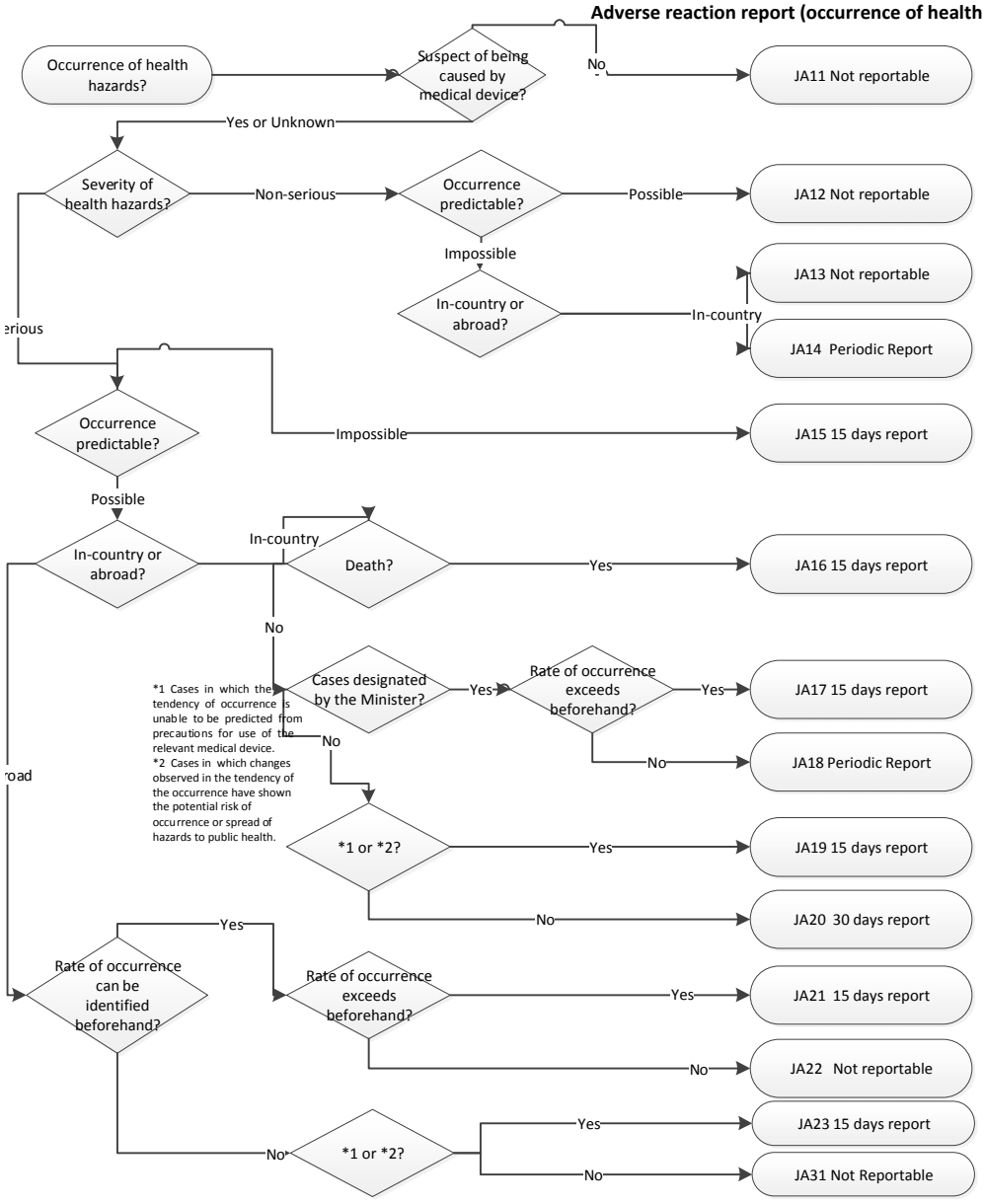
Quality Records

Quality Record	Required Approvals
Complaint Record	None

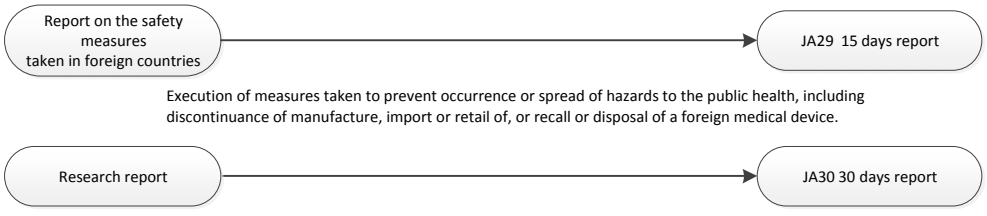
Appendix A – Japan PMDA Decision Tree



Adverse reaction report (occurrence of health hazards)



Report on the safety measures taken in foreign countries and research report



Execution of measures taken to prevent occurrence or spread of hazards to the public health, including discontinuance of manufacture, import or retail of, or recall or disposal of a foreign medical device.

Research reports showing the potential risk to cause cancer or other serious disease, disabling or death due to faults of or infectious disease associated with the use of the medical device or a foreign medical device, which shows that substantial changes have been observed in the tendency of the occurrence of cases etc. due to faults or of infectious diseases associated with the medical device or a foreign medical device, or those shows the lack of the approved indications and effects of the medical device.

Appendix B – Multiple Decisions per Event

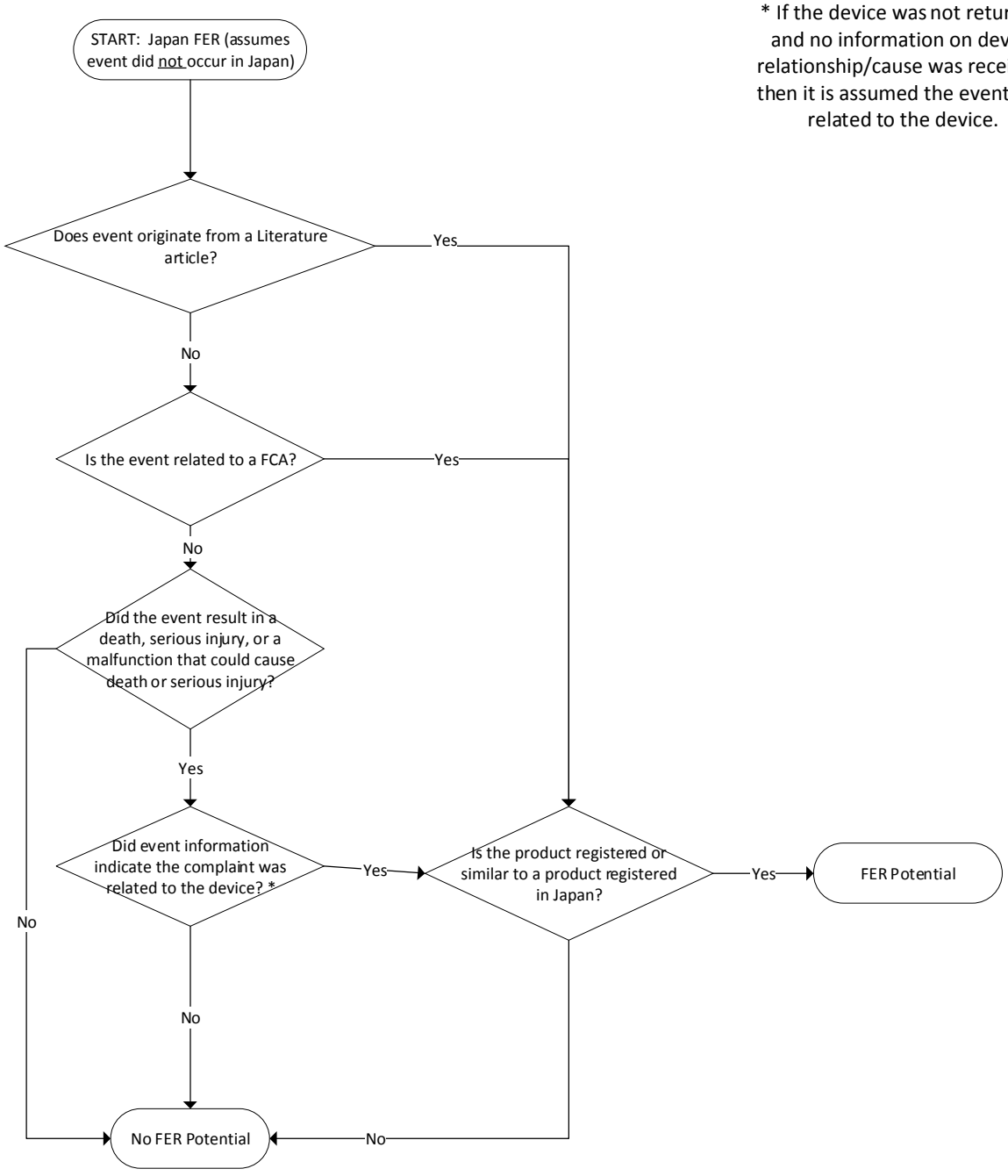
Use the following chart to determine the reporting approach if there are multiple products associated with a complaint.

Region	RD Approach	Regulatory Reporting Approach
Japan	Per License (Shonin)	Per License (Shonin)

Appendix C – Matrix Logic for Determining Report Types

Country	In Country Event	Event in Another Country; Same Device Registered in Country	Event in Another Country; Similar Device Registered in Country	Reporting Requirement
	Yes/No	**Yes/No**	**Yes/No**	**Mandatory/Voluntary**
Japan	**Yes**	**Yes**	**Yes**	**Mandatory**

Appendix D – Japan Foreign Experience Report (FER) Tree



* If the device was not returned and no information on device relationship/cause was received, then it is assumed the event was related to the device.

Appendix E – Code and Rationale Matrix

Code	Rationale
JA01	<Malfunction> Not serious -> Predictable -> NR
JA02	<Malfunction> Not serious -> Unpredictable -> Abroad -> NR
JA03	<Malfunction> Not serious -> Unpredictable -> Domestic -> Periodic
JA04	<Malfunction> Serious -> Unpredictable -> 30 day
JA05	<Malfunction> Serious -> Predictable -> Domestic -> designated -> rate excd -> 15 day
JA06	<Malfunction> Serious -> Predictable -> Domestic -> designated -> rate not excd -> Periodic
JA07	<Malfunction> Serious -> Predictable -> Domestic -> Not designated -> 30 day
JA08	<Malfunction> Serious -> Predictable -> Abroad -> incident rate identified -> rate excd -> 15 day
JA09	<Malfunction> Serious -> Predictable -> Abroad -> Incident rate identified -> not excd -> NR
JA10	<Malfunction> Serious -> Predictable -> Abroad -> incident rate not identified -> NR
JA11	<AE> Not Device Related -> NR
JA12	<AE> Device Related -> Not serious -> Predictable -> NR
JA13	<AE> Device Related -> Not serious -> Unpredictable -> Abroad -> NR
JA14	<AE> Device Related -> Not serious -> Unpredictable -> Domestic -> Periodical
JA15	<AE> Device Related -> Serious -> Unpredictable -> 15 day
JA16	<AE> Device Related -> Serious -> Predictable -> Domestic -> Death -> 15 day
JA17	<AE> Device Related -> Serious -> Predictable -> Domestic -> Alive -> designated-> rate excd-> 15day
JA18	<AE> Device Related-> Serious-> Predictable-> Domestic-> Alive-> designated-> not excd-> Periodic
JA19	<AE>Device Related->Serious->Predictable->Domestic->Alive->not designated->certain condition->15 day
JA20	<AE> Device Related-> Serious-> Predictable-> Domestic-> Alive-> not designated-> other-> 30 day
JA21	<AE> Device Related-> Serious-> Predictable-> Abroad-> incident rate identified -> excd -> 15 day
JA22	<AE> Device Related-> Serious-> Predictable-> Abroad-> incident rate identified -> not excd -> NR

Code	Rationale
JA23	<AE> Device Related -> Serious -> Predictable -> Abroad -> incident rate not identified -> certain condition -> 15 day
JA24	<Bio-product; Infectious Disease> Not Device Related -> NR
JA25	<Bio-product; Infectious Disease> Device Related -> Not serious -> Predictable -> NR
JA26	<Bio-product; Infectious Disease> Device Related -> Not Serious -> Unpredictable -> Abroad -> NR
JA27	<Bio-product; Infectious Disease> Device Related -> Not Serious -> Unpredictable -> Domestic -> 15 day
JA28	<Bio-product; Infectious Disease> Device Related -> Serious -> 15 day
JA29	<Report on the safety measures taken in foreign countries>
JA30	<Research report>
JA31	<AE> Device Related -> Serious -> Predictable -> Abroad -> incident rate not identified -> other -> NR

Appendix F – Japan (PMDA) Reporting Timelines

Report Type	Timeline
▪ Form 8, (domestic) serious injury, suspected causal failure predictable ▪ Form 8, (FER) potential death or serious injury, failure not predictable ▪ Form 8, (domestic) potential death or serious injury, failure predictable or not predictable ▪ Form 10, literature	Within 30 calendar days of becoming aware of event
▪ Form 8, (domestic) death, suspected causal failure predictable or not predictable ▪ Form 8, (domestic) serious injury, suspected causal failure not predictable ▪ Form 8, (FER) death or serious injury,suspected causal failure not predictable ▪ Form 9,(domestic and FER) death or serious injury (including potential), Rate of occurrence exceeds pre-known ▪ Form 10, Overseas Field Corrective Action ▪ Form 8, (domestic and FER) serious injury, suspected causal failure predictable, the trend of occurrence cannot be predicted from the precautions for use or there is a change in the occurrence trend that shows a potential risk to cause or spread public health hazard	Within 15 calendar days of becoming aware of event
▪ Form 12 (Domestic) not serious, not predictable.	Yearly within two months of date of Approval